

Lecture Printout, Week 08: Digital Surveillance, Data Harvesting, and The Right to Privacy

LECTURE A: THE ISSUE & SOME METHODOLOGICAL APPROACHES.

PART I: DIGITAL SURVEILLANCE & DATA HARVESTING.

Government Surveillance (some examples):

Big Data & Surveillance Capitalism (some examples)

PART II: APPLIED ETHICS: SOME METHODS.

Strategy 1: Discover the One-True Moral Theory.

Strategy 2: The “Pluralist Approach”.

- (a) Treat several of the big moral theories as each identifying one (but not the only) morally relevant consideration that counts in favour of (or counts against) actions of the type in question.
- (b) If different morally relevant considerations pull in opposite directions, argue that the considerations on one side are “weightier” than those on the other.

Strategy 3: Argument by Moral Analogy.

Step 1: Start with an uncontroversial Moral Claim.

Step 2: What features explain P1 is true?

Step 3: Frame a “pro tanto” moral principle around the answer at step 2.

Step 4: Show that the target moral claim shares the wrong-making feature identified in the principle.

PART III: THE NATURAL MORAL OBJECTION TO DIGITAL SURVEILLANCE & DATA HARVESTING.

Claim 1: Digital surveillance and data harvesting (often) contravene or deprive people of their privacy.

Claim 2: Insofar as these *do* contravene privacy, they either...

- (a) _____, or
- (b) _____.

Two worries about explaining the wrong of privacy deprivation in terms of option (a) in Claim 2:

Worry 1:

Worry 2:

LECTURE B: THE NATURE AND VALUE OF PRIVACY.

PART I: RECAP – THE NATURAL OBJECTION TO SURVEILLANCE.

PART II: DO WE HAVE A MORAL RIGHT TO PRIVACY?.

Question 1: What is privacy? With is a right to privacy a right to?

The control account of privacy (different statements/expressions of it).

“Privacy is the claim of individuals...to determine for themselves when, how, and to what extent information about them is communicated to others.” (Westin 1968: 7)

“[Privacy is] our ability to control who has access to us and to information about us...” (Rachels 1975: 326)

“Privacy is the state of the agent possessing control over a realm of intimacy, a realm which includes her decisions about intimate informational access...” (Inness 1991: 238)

The access account: (different statements/expressions of it).

“[T]he access account holds that information needs to be accessed for there to be an actual violation of privacy.” (Macnish 2018: 417-423)

“[P]rivacy is related to the amount of information known about an individual. [...] A loss of privacy occurs as others obtain information about an individual...” (Gavison 1980: 238-9)

Question 2: What is the ground for a right to privacy?

- The Flourishing View.

- Respect for Persons View.

PART VI: SELF-INTEREST AS A THE GROUND FOR A RIGHT TO PRIVACY?



Mr. Purple's Choices

Stay Silent

Rat on Mr. Green

Mr. Green's Choices:	
Stay Silent	Rat on Mr. Purple
1 year	Freedom
Life in Prison	10 years
Freedom!	10 years



Bonnie's Choices

Don't Dox

Dox Rival

Clyde's Choices:	
Don't Dox	Dox Rival
50%	0%
0%	10%
100%	100%

PART VII: DOES A RIGHT TO PRIVACY SUFFICE TO EXPLAIN PEOPLE'S OBJECTIONS?

REFERENCES.

- Gavison, Ruth (1980). "Privacy and the Limits of Law". *The Yale Law Journal* 89(3):421-471
- Inness, Julie (1991). "Information, Access, or Intimate Decisions About One's Actions? The Content of Privacy". *Public Affairs Quarterly* 5(3):227-242
- Macnish, Kevin (2018). "Government Surveillance and Why Defining Privacy Matters in a Post Snowden World." *Journal of Applied Philosophy* 35(2):417-432.
- Moore, Adam (2003). "Privacy: Its Meaning and Value". *American Philosophical Quarterly* 40(3)215-227.)
- Moore, Adam D. & Sean Martin (2020). Privacy, Transparency, and the Prisoner's Dilemma. *Ethics and Information Technology* 22:211-222.
- Rachels, James (1975). "Why Privacy is Important". *Philosophy & Public Affairs* 4(4):323-333
- Westin, Alan (1968). *Privacy and Freedom*. New York: Athenaeum.